

Present :  
Mr. Justice Md. Jahangir Hossain  
And  
Mr. Justice Ashish Ranjan Das.

**Criminal Misc.No. 7418 of 1999**

**In the matter of:**

Rizia Rahman and others...  
..... Petitioners

-Versus-

Hazi Hamidur Rahman and another  
..... Opposite parties.

None appears

.....For the accused- petitioner.  
Mr. S.M. Golam Mostafa Tara, D.A.G with  
Most. Asma Khatun,, A.A.G.  
... For the State

**Heard and Judgment on:**  
**07.02.2022**

**Ashish Ranjan Das, J:**

Rule for quashment under section 561-A of the Code of Criminal Procedure (for short the Code) at the instance of the accused petitioners was issued on 03.12.2000 in the following terms:

*Let a Rule be issued calling upon the Deputy Commissioner, Dhaka as well as opposite party No.1 to show cause as to why the impugned judgment and order dated 28.08.2000 passed by the Metropolitan Additional Sessions Judge, 4th*

*Court, Dhaka setting aside the order dated 19.01.2000 passed by the Metropolitan Magistrate, Dhaka in C .R. Case No.3376 of 1999 should not be quashed and/ or such other or further order or orders passed as to this Court may seem fit and proper.*

None appeared to press or oppose the Rule, although the matter is old enough and has been occurring in the daily cause list with the names of the Advocates.

It appears that the name of the accused petitioner No.1 Mojibur Rahman was deleted in the leave of the court on the same date on 03.12.2000.

Short facts relevant for the purpose that could be gathered from the file is that accused Mojibur Rahman and Haji Hamidur Rahman used to be cousins, both of them were business man. Mojibur Rahman made up his mind to establish a rerolling mill in the company Pubali Metal Works Limited. For the purpose Mojibur Rahman was in need of running capital complainant opposite party Hamidur Rahman agreed to lend money, he lent Tk. 23,40000/- by taking a loan from a bank. It was stipulated that Mojibur

Rahman would cleared the dues within the next 1(one) year by instalments. For a further security Mojibur Rahman issued an account payee cheque in favour of Hamidur Rahman on 28.04.1999 for amount of Tk. 5 lacs and the cheque being No.03A-1743653. But as Hamidur Rahman wanted to encash the cheque, it was bounce back for inadequacy of fund. Hamidur Rahman initially requested to Mojibur Rahman to pay the money and finally on 11.07.1999 issued a legal notice. But Mojibur Rahman in reply to the notice denied the allegations, thus complainant opposite party no.1 Hamidur Rahman brought a case under section 138 of the Negotiable Instruments Act of 1881 being C.R . Case No. 3376 of 1999 dated 25.08.1999 in the court of Chief Metropolitan Magistrate, Dhaka. The case was however later transferred to the court of Metropolitan Magistrate Mr. Biman Bihari Barua.

Before the learned Metropolitan Magistrate, Mojibur Rahman and 3 others i.e. his wife and 2 sons pressed an application for discharge under section 241-A of the Code.

As the accused said pressed an application under section 241-A of the Code, the learned Metropolitan

Magistrate hearing both the sides and upon perusal of the papers was pleased to discharge all the accused persons by his order dated 19.01.2000.

Being aggrieved Haji Hamidur Rahman preferred criminal revisional application being No. 74 of 2000 that was heard by the learned 4<sup>th</sup> Court of Additional Metropolitan Sessions Judge, Dhaka, however he was pleased to set aside the order of discharge and hence the application for quashment at the instance of the accused persons.

Their case is that the accused nos. 2, 3, 4 nominated in the petition of complaint i.e. wife and 2 sons of Mojibur Rahman were not at all aware of the deal nor they had any responsibility. It was not denied that Mojibur Rahman borrowed the above money from his cousin's Haji Habibur Rahman. But his case is that there was a sitting between the parties on 27.05.1999 and pursuant to the decision of the sitting the accused Mojibur Rahman paid Tk. 33,19000/- to the complainant i.e. above the borrowed amount. It was further stipulated that Haji Habibur Rahman would return the cheque. But he did not rather brought this fictitious case, however, Mojibur Rahman as plaintiff brought Title

Suit No. 158 of 1999 in the 4<sup>th</sup> Court of Subordinate Judge, Dhaka on 26.07.1999 praying for a declaration that the impugned cheque is void and not binding upon Mojibur Rahman, the suit has been still pending.

The case of the petitioners is that despite knowing this developments Haji Hamidur Rahman brought this criminal case later.

Now, in one hand before filing of this complaint case attracting section 138 of the Negotiable Instruments Act, accused Mojibur Rahman had instituted a declaratory suit being Title Suit No.158 of 1999 in the 4<sup>th</sup> Court of Subordinate Judge, Dhaka challenging validity of the impugned cheque and the suit has been pending. Thus, whether on that cheque a criminal proceeding under section 138 of the Negotiable Instruments Act is proceed or not. Is a question will by the petitioner side that requires consideration? Secondly, it appears from the petition of complaint that the impugned cheque which is the subject matter of the criminal proceeding was issued by accused Mojibur Rahman and not the other 3 persons nominated as accused in the complaint.

Now where the name of the Mojibur Rahman, the accused No.1 has been deleted with the leave of the court. The proceeding in respect of other 3 co-accused entails no criminal responsibility. It is clear us to see that the complainant opposite party also did not appear, both the parties as first cousin living in the same old Dhaka area and there is no clue in the file whether both of them or any of them is alive or not or whether the dispute has been minimized between the parties during the period of some 23 years. Thus, we are of the view that the criminal proceeding attracting section 138 of the Negotiable Instruments Act has lost its merit and the grounds discussed above when in its turn the proceeding should be quashed.

As a result, the Rule made absolute and the criminal proceeding being C.R. No. 57 of 1999 attracting section 138 of the Negotiable Instruments Act, 1881, now pending in the court of Metropolitan Magistrate, Dhaka is hereby quashed.

The ad-interim orders passed earlier if any are hereby recalled and vacated.

Communicate the judgment and Order to the court below at once.

**Justice Ashish Ranjan Das**

I agree.

**Justice Md. Jahangir Hossain**

**Bashar B.O**

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*Court, Dhaka setting aside the order dated 19.01.2000 passed by the Metropolitan Magistrate, Dhaka in C .R. Case No.3376 of 1999 should not be quashed and/ or such other or further order or orders passed as to this Court may seem fit and proper.*

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Rahman would cleared the dues within the next 1(one) year by instalments. For a further security Mojibur Rahman issued an account payee cheque in favour of Hamidur Rahman on 28.04.1999 for amount of Tk. 5 lacs and the cheque being No.03A-1743653. But as Hamidur Rahman wanted to encash the cheque, it was bounce back for inadequacy of fund. Hamidur Rahman initially requested to Mojibur Rahman to pay the money and finally on 11.07.1999 issued a legal notice. But Mojibur Rahman in reply to the notice denied the allegations, thus complainant opposite party no.1 Hamidur Rahman brought a case under section 138 of the Negotiable Instruments Act of 1881 being C.R . Case No. 3376 of 1999 dated 25.08.1999 in the court of Chief Metropolitan Magistrate, Dhaka. The case was however later transferred to the court of Metropolitan Magistrate Mr. Biman Bihari Barua.

Before the learned Metropolitan Magistrate, Mojibur Rahman and 3 others i.e. his wife and 2 sons pressed an application for discharge under section 241-A of the Code.

As the accused said pressed an application under section 241-A of the Code, the learned Metropolitan

Magistrate hearing both the sides and upon perusal of the papers was pleased to discharge all the accused persons by his order dated 19.01.2000.

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Their case is that the accused nos. 2, 3, 4 nominated in the petition of complaint i.e. wife and 2 sons of Mojibur Rahman were not at all aware of the deal nor they had any responsibility. It was not denied that Mojibur Rahman borrowed the above money from his cousin's Haji Habibur Rahman. But his case is that there was a sitting between the parties on 27.05.1999 and pursuant to the decision of the sitting the accused Mojibur Rahman paid Tk. 33,19000/- to the complainant i.e. above the borrowed amount. It was further stipulated that Haji Habibur Rahman would return the cheque. But he did not rather brought this fictitious case, however, Mojibur Rahman as plaintiff brought Title

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The case of the petitioners is that despite knowing this developments Haji Hamidur Rahman brought this criminal case later.

Now, in one hand before filing of this complaint case attracting section 138 of the Negotiable Instruments Act, accused Mojibur Rahman had instituted a declaratory suit being Title Suit No.158 of 1999 in the 4<sup>th</sup> Court of Subordinate Judge, Dhaka challenging validity of the impugned cheque and the suit has been pending. Thus, whether on that cheque a criminal proceeding under section 138 of the Negotiable Instruments Act is proceed or not. Is a question will by the petitioner side that requires consideration? Secondly, it appears from the petition of complaint that the impugned cheque which is the subject matter of the criminal proceeding was issued by accused Mojibur Rahman and not the other 3 persons nominated as accused in the complaint.

Now where the name of the Mojibur Rahman, the accused No.1 has been deleted with the leave of the court. The proceeding in respect of other 3 co-accused entails no criminal responsibility. It is clear us to see that the complainant opposite party also did not appear, both the parties as first cousin living in the same old Dhaka area and there is no clue in the file whether both of them or any of them is alive or not or whether the dispute has been minimized between the parties during the period of some 23 years. Thus, we are of the view that the criminal proceeding attracting section 138 of the Negotiable Instruments Act has lost its merit and the grounds discussed above when in its turn the proceeding should be quashed.

As a result, the Rule made absolute and the criminal proceeding being C.R. No. 57 of 1999 attracting section 138 of the Negotiable Instruments Act, 1881, now pending in the court of Metropolitan Magistrate, Dhaka is hereby quashed.

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